



U.S. Department
of Transportation

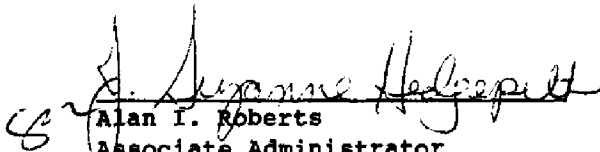
400 Seventh Street, S.W.
Washington, D.C. 20590

Research and
Special Programs
Administration

DOT-E 10406 (EXTENSION)
ORIGINAL January 16, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10406 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 29 1992

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

The Ensign-Bickford Company
Simsbury, CT

August 26, 1992



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 16 1991

DOT-E 10406

1. The Ensign-Bickford Company, Simsbury, Connecticut, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a high explosive for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of desensitized PETN in polyethylene bottles overpacked in DOT Specification 12H fiberboard boxes and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on an application from Ensign Bickford dated June 6, 1990, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Desensitized PETN classed as a Class A explosive.
4. PROPER SHIPPING NAME (49 CFR 172.101). High explosive.
5. REGULATION(S) AFFECTED. 49 CFR 173.65.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packagings prescribed are one gallon capacity polyethylene bottles described on Bercon Packaging, INC. sheet #14:01 dated 5/04/90. Each bottle may not contain more than 5.5 pounds of desensitized PETN. Not more than 9 bottles may be placed in a DOT Specification 12H fiberboard box which must be provided with fiberboard dividers to prevent any unsafe movement of the bottles.
8. SPECIAL PROVISIONS.
 - a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.
 - b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Drivers must have been instructed as to necessary safeguards and proper procedures in the event of unusual delay, fire, or accident.

d. Motor carriers operating under the terms of this exemption must have a "Satisfactory" safety rating as prescribed in 49 CFR Part 385.

9. REPORTING REQUIREMENTS: Any incident involving fire, explosion or loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. October 31, 1992.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 16 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: USCG, FAA, FHWA, FRA.